

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JONATHAN RODRIGUEZ,

Index No.

Plaintiff,

Plaintiff designates

-against-

Bronx County as the place of trial

CITY OF NEW YORK, FRANKLYN SANTANA,
individually and in his official capacity as New York City
police officer, and John or Jane Doe 1-10, individually and in
their official capacities as New York City police officers,The basis of the venue is where the
injury occurredSUMMONSDefendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 8, 2020

SIM & DEPAOLA, LLP

By: Markus A. Wilson, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer FRANKLYN SANTANA
Shield No. 12709, Tax Id. 949617
At 41st Precinct
1035 Longwood Avenue
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JONATHAN RODRIGUEZ,

Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, FRANKLYN SANTANA,
individually and in his official capacity as New York
City police officer, and John or Jane Doe 1-10, individually
and in their official capacities as New York City police
officers,

Defendants.

-----X

Plaintiff, JONATHAN RODRIGUEZ, by and through his undersigned attorneys, Sim & DePaola, LLP, for his complaint against the Defendants, City of New York, FRANKLYN SANTANA, individually and in their official capacities as New York City police officer, and John or Jane Doe 1-10, individually and in their official capacities as New York City police officers, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the common law of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of his civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. The following claims arise from September 28, 2018 incident, in which Defendants, including SANTANA, and John or Jane Doe 1-10 acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained Plaintiff in the vicinity of the 758 Kelly

Street, within the County of Bronx, City and State of New York. Plaintiff was subsequently transported to the 41st precinct. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff was wrongfully detained for approximately twenty-four (24) to thirty-six (36) hours. Plaintiff was released on or about September 29, 2018 when the Bronx District Attorney's Office declined to prosecute the matter.

3. At all times here mentioned, Defendants, including SANTANA, and John or Jane Doe 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff have served a notice of claim, which have been deemed timely served *nunc pro tunc* by this Court.

5. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

6. Plaintiff has complied with municipal Defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

7. This action and associated claims have been timely commenced within all applicable statutes of limitations.

8. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiff, JONATHAN RODRIGUEZ ("Plaintiff"), presently resides at 3071 Park Avenue, Apt. 16E, Bronx, New York 10451.

10. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

12. In addition, at all times here relevant, Defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

13. Defendant, FRANKLYN SANTANA was, at all times here relevant, a police officer employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the Defendant, City of New York. Defendant SANTANA was, at the times relevant herein, a police officer, under Shield No. 12709 and Tax Id No. 964206 assigned to 41st NYPD Precinct, located at 1035 Longwood Avenue, Bronx, New York 10459. Defendant SANTANA is being sued in his individual and official capacities.

14. At all relevant times, Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policymakers or officials employed by the NYPD, or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, John or Jane Doe 1-10, as such knowledge is within the exclusive possession of Defendants.

15. At all relevant times herein, Defendants, including SANTANA and John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD.

Defendants, including SANTANA and John or Jane Doe 1-10 are being sued in their individual and official capacities.

16. At all relevant times herein, Defendants, including SANTANA were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

17. On September 28, 2018 at approximately 1:11 A.M., Plaintiff was in the vicinity of the 758 Kelly Street, in the County of Bronx, State of New York.

18. On said date, time and location, Defendants, including SANTANA, John or Jane Doe 1-10, illegally searched the Plaintiff at said location.

19. At all relevant times, Defendants, including SANTANA, John or Jane Doe 1-10, did not have arrest warrants for Plaintiff.

20. At all relevant times, Defendants, including SANTANA, John or Jane Doe 1-10, did not provide full and truthful facts, regarding the likely presence of marijuana, to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.

21. At all relevant times, Defendants, including SANTANA, John or Jane Doe 1-10, intentionally provided said false or fabricated information that would be likely to influence a prosecutors employed by the District Attorney's Office to wrongfully prosecute the Plaintiff, namely that Plaintiff was observed to be arrested and searched, so that a criminal prosecution would be initiated against Plaintiff.

22. Defendants, including SANTANA, John or Jane Doe 1-10, fabricated the fact that said illicit items were recovered at all or fabricated the locations where said items were recovered, so

that they could falsely implicate Plaintiff of various crimes that Defendants knew his to be innocent of.

23. Defendants, including SANTANA, John or Jane Doe 1-10, entered said location with the intentions of finding any marijuana on Plaintiff but however, failed to find anything illegal on his person or his reach.

24. Plaintiff was not in actual, constructive, or statutory possession of marijuana, and had not committed any crime or violation of the law.

25. Plaintiff had multiple assaults and batteries, committed to his person, by Defendants, including SANTANA, John or Jane Doe 1-10, including but not limited to, being placed in handcuffs too tightly.

26. Defendants, including SANTANA, John or Jane Doe 1-10, falsely claimed they found weapons, firearm, marijuana, and ammunition, despite being fully aware that no such event or occurrence ever transpired in reality.

27. At no time did Plaintiff possess any marijuana.

28. Defendants', including SANTANA, John or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against the Plaintiff and thus, Plaintiff was falsely arrested and charged with possession of marijuana, that Defendants knew to be false since Plaintiff was not in criminal possession of any contraband.

29. Defendants, including SANTANA, John or Jane Doe 1-10, were fully aware that Plaintiff did not have any illegal contraband on his person or in his possession, but Defendants, including SANTANA, John or Jane Doe 1-10, knowingly and intentionally decided to fabricate said observation to justify an otherwise invalid arrest and to ensure that Plaintiff was maliciously prosecuted.

30. Defendants, including SANTANA, John or Jane Doe 1-10, arrested and initiated a criminal prosecution against Plaintiff, not because Defendants believed plaintiff to be guilty of any crime or violation of the law, but because of their desire to compel Plaintiff, who was their true target and suspect, to plead guilty, in retribution for his prior successful lawsuit against Defendants, including SANTANA, John or Jane Doe 1-10.

31. Defendants, including SANTANA, John or Jane Doe 1-10, ensured Plaintiff's cooperation by fabricating false evidence against plaintiff, namely that he was observed to be in possession of weapons, firearm, marijuana, and ammunition.

32. Defendants, including SANTANA, John or Jane Doe 1-10, further ensured that Plaintiff would be falsely inculpated by fabricating the locations in which the illicit drugs were discovered.

33. Plaintiff was rear handcuffed by Defendants, including SANTANA, John or Jane Doe 1-10, and placed in a NYPD vehicle to be transported to NYPD 41st precinct.

34. Upon arrival at said location or while plaintiff remained detained at the NYPD precinct, he was illegally searched, including a strip-search with cavity inspection, questioned, photographed and fingerprinted by, or at the direction of Defendants, including SANTANA, John or Jane Doe 1-10.

35. Defendant FRANKLYN SANTANA was Plaintiff's arresting officer and signed his criminal court complaint under Arrest #B18644210, knowingly and falsely accusing Plaintiff of Tampering with Physical Evidence, Obstructing Governmental Administration in the second degree, Criminal Possession of Marijuana in the fifth degree, Unlawful Possession of Marijuana Disorderly Conduct and other related charges, all of which Defendant SANTANA knew to be untrue.

36. Defendant SANTANA directly participated in and/or directed that the unfounded criminal investigation proceed against Plaintiff take place, so that he could exact retribution upon Plaintiff for his prior successful civil lawsuit against him and which contributed to the disciplinary action levied against him, as well as his forced and involuntary assignment to the Bronx Criminal Court Section, a well know depository for unfit NYPD officers and detectives, such as Defendant SANTANA.

37. Plaintiff was arraigned and formally charged with one (1) count of Tampering with Physical Evidence, one (1) count of Obstructing Governmental Administration in the second degree, one (1) count of Criminal Possession of Marijuana in the fifth degree, one (1) count of Unlawful Possession of Marijuana and one (1) count of Disorderly Conduct.

38. At no point did the Defendants including SANTANA, John or Jane Doe 1-10, ever observe Plaintiff possessed marijuana.

39. At no point were the Defendants, including SANTANA, John or Jane Doe 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

40. Plaintiff was transferred to New York City Police Department, where he was unlawfully detained until his eventual release on, or about, September 29, 2018.

41. Plaintiff was compelled to return to court, multiple times, to contest the false charges levied against him, including Tampering with Physical Evidence, Obstructing Governmental Administration in the second degree, Criminal Possession of Marijuana in the fifth degree, Unlawful Possession of Marijuana and Disorderly Conduct.

42. Plaintiff remained in custody at the precinct, until September 29, 2018 when the Bronx County District Attorney's Office declined to prosecute this matter and he was released.

43. Defendants, including SANTANA, John or Jane Doe 1-10 did not possess a valid, judicially authorized arrest warrant for Plaintiff.

44. Defendants, including SANTANA, John or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

45. Defendants, including SANTANA, John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime, as Defendants were fully aware that any evidence against Plaintiff was either fraudulent or fabricated, including the observation provided by Defendant SANTANA, in which Plaintiff falsely accused of possessing marijuana at said location.

46. While Plaintiff was unlawfully detained, Defendants, including SANTANA, John or Jane Doe 1-10, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Tampering with Physical Evidence, Obstructing Governmental Administration in the second degree, Criminal Possession of Marijuana in the fifth degree, Unlawful Possession of Marijuana and Disorderly Conduct.

47. Defendants, including SANTANA, John or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely entering a residence illegally without a search warrant, arresting an individual without probable cause.

48. Defendants, including SANTANA, John or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against Plaintiff.

49. At all times relevant hereto, Defendants, including SANTANA, John or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene

when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

50. At all times relevant hereto, Defendants, including SANTANA, John or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious criminal prosecution.

51. Plaintiff asserts that the Defendants, including SANTANA, John or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

52. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

53. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the

incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

54. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

55. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana.

It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

56. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

57. Other articles include: (i) "Testifying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

58. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York*

Times published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

59. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

60. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

61. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

62. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

63. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

64. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including SANTANA.

65. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein.

66. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

67. The aforementioned acts of Defendants, including the City, Defendants, including SANTANA and John Does 1-3, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

68. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth herein.

70. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

71. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

72. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

73. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

74. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

75. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth herein.

78. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

79. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

80. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

81. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

82. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth herein.
85. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
86. Plaintiff was conscious of his confinement.
87. Plaintiff did not consent to his confinement.
88. Plaintiff's arrest and false imprisonment was not otherwise privileged.
89. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth herein.
92. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
93. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
94. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth herein.

97. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

98. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or justification.

99. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth herein.

103. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

104. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

105. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

106. The above paragraphs are here incorporated by reference as though fully set forth herein.

107. Defendants initiated the prosecution against Plaintiff.

108. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

109. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

110. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

111. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONMalicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

114. The above paragraphs are here incorporated by reference as though fully set forth herein.

115. Defendants initiated the prosecution against Plaintiff.

116. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

117. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

118. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

119. Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights by causing Plaintiff to remain unlawfully incarcerated after his arraignment and trial by jury

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth herein.

122. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

123. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

124. Defendants intended to inflict substantial harm upon Plaintiff.

125. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

128. The above paragraphs are here incorporated by reference as though fully set forth herein.

129. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

130. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

131. Defendants intended to inflict substantial harm upon Plaintiff.

132. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

133. Defendants' actions deprived Plaintiff of his constitutional rights to free from illegal searches and seizures and to not be deprived of his liberty without the due process of law.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under New York State Law

135. The above paragraphs are here incorporated by reference as though fully set forth herein.

136. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

137. Defendants forwarded said false information to the District Attorney's Office.

138. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

139. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth.

143. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

144. Defendants forwarded said false information to the District Attorney's Office.

145. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

146. Accordingly, defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

148. The above paragraphs are here incorporated by reference as though fully set forth herein.

149. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

150. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

151. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.

152. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such

as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

153. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

154. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

155. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

156. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

157. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

158. The above paragraphs are here incorporated by reference as though fully set forth herein.

159. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

160. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

161. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

162. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

163. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

164. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

165. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

166. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

167. The above paragraphs are here incorporated by reference as though fully set forth herein.

168. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

169. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

170. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

171. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

172. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

173. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

174. The above paragraphs are here incorporated by reference as though fully set forth herein.

175. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

176. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

177. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

178. The above paragraphs are here incorporated by reference as though fully set forth herein.

179. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

180. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

181. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

182. The above paragraphs are here incorporated by reference as though fully set forth.

183. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

184. Defendant City breached those duties of care.

185. Defendant City placed defendants in a position where they could inflict foreseeable harm.

186. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

187. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

188. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

189. The above paragraphs are here incorporated by reference as though fully set forth.

190. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

191. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

192. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

193. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

194. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

195. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

196. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: January 8, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Markus A. Wilson, Esq.

Attorneys for Plaintiff

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ATTORNEY VERIFICATION

I, Markus A. Wilson, an attorney admitted to practice in the courts of New York State, state that I am associated with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 8, 2020



MARKUS A. WILSON, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JONATHAN RODRIGUEZ,

Plaintiff,

-against-

CITY OF NEW YORK, FRANKLYN SANTANA,
individually and in his official capacity as New
York City police officer, and John or Jane Doe
1-10, individually and in their official capacities
as New York City police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Markus A. Wilson, Esq.
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated:

Attorney(s) for